Non-Disclosure Agreement

Preamble

This Confidentiality Agreement (hereinafter the "Agreement") is concluded on the 18th day of August 2025 between Breker Innovations GmbH, a limited liability company organised under the laws of the Federal Republic of Germany, having its registered seat at Friedrichstrasse 191, 10117 Berlin, Germany, registered with the Commercial Register of the Local Court (Amtsgericht) of Berlin-Charlottenburg under HRB 204817 (hereinafter "Breker"), and ABC GmbH, a limited liability company organised under the laws of the Federal Republic of Germany, having its registered seat at ABC-strasse 42, 80339 Munich, Germany (hereinafter "ABC"). Breker and ABC are hereinafter individually referred to as a "Party" and collectively as the "Parties."

The Parties have entered into discussions concerning a potential cooperation in the fields of industrial automation, robotics process optimisation, and advanced manufacturing systems. In the course of these discussions, each Party may find it necessary or desirable to disclose to the other Party certain information which the disclosing Party regards as confidential or proprietary. The Parties recognise the importance of safeguarding such information and wish to establish a framework governing the treatment of such information on the basis of mutual trust and good faith, in accordance with the principles of fair dealing under German civil law.

I — Governing Law, Jurisdiction, and Applicable Legal Framework

This Agreement shall be governed by and construed exclusively in accordance with the substantive laws of the Federal Republic of Germany, excluding the United Nations Convention on Contracts for the International Sale of Goods (CISG) and excluding the conflict of laws rules of German private international law. The Parties submit to the exclusive jurisdiction of the competent courts of Berlin, Germany, for the resolution of all disputes arising out of or in connection with this Agreement. Prior to initiating court proceedings, the Parties undertake to engage in good-faith settlement discussions for a period of not less than forty-five (45) calendar days following written notification of the dispute. Should such discussions fail to produce a resolution, either Party shall be free to pursue its rights before the courts.

II — Nature and Scope of Protected Information

For the purposes of this Agreement, "Confidential Information" shall encompass all information, knowledge, data, documents, materials, samples, prototypes, and know-how of a technical, commercial, financial, organisational, or personal nature which is disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party") in connection with the discussions and potential cooperation described in the Preamble, irrespective of the form or medium in which such information is conveyed and irrespective of whether such information is expressly designated as confidential. Information communicated orally or visually shall be deemed Confidential Information if a reasonable businessperson, acting in good faith, would recognise it as being of a confidential nature having regard to its content and the circumstances of its disclosure. The Parties acknowledge that the mere existence of their discussions and the potential cooperation itself constitutes Confidential Information within the meaning of this Agreement.

III — Duration of the Agreement and Survival of Obligations

This Agreement shall enter into force upon signature by both Parties and shall remain in effect for a period of three (3) years from the date first written above. Either Party may terminate this Agreement by giving ninety (90) calendar days' written notice to the other Party, provided, however, that such termination shall not affect the obligations of confidentiality with respect to Confidential Information already disclosed. The obligations of confidentiality set forth herein shall survive the termination or expiry of this Agreement and shall continue to bind the Parties and their legal successors for a period of five (5) years from the date of each individual disclosure. The Parties expressly acknowledge that this survival period reflects the particular sensitivity of the information likely to be exchanged and the potential harm that could result from its unauthorised disclosure.

IV — Permitted Use and Standard of Care

The Receiving Party shall use the Confidential Information exclusively for the purpose of evaluating and, if applicable, implementing the potential cooperation described in the Preamble and for no other purpose whatsoever. The Receiving Party shall treat the Confidential Information with at least the same degree of care and protection as it applies to its own confidential information of comparable importance, but in no event with less than the care that a prudent and diligent businessperson (ordentlicher Kaufmann) would exercise under comparable circumstances. The Receiving Party shall implement appropriate technical and organisational measures to prevent the unauthorised access, disclosure, copying, or use of Confidential Information, and shall ensure that such

measures are maintained throughout the duration of the confidentiality obligations. The Receiving Party shall be liable for any breach of this Agreement caused by its employees, officers, agents, or any other persons to whom it has granted access to Confidential Information in accordance with this Agreement, as if such breach had been committed by the Receiving Party itself.

V — Circumstances in Which the Obligations Do Not Apply

The obligations set forth in this Agreement shall not extend to information which the Receiving Party is able to demonstrate, by means of contemporaneous documentary evidence, falls within one or more of the following categories: information which was already in the public domain at the time of disclosure or which enters the public domain thereafter without any breach of this Agreement by the Receiving Party; information which was lawfully in the possession of the Receiving Party prior to its disclosure by the Disclosing Party and which was not itself subject to any obligation of confidentiality owed to the Disclosing Party or any third party; information which has been independently developed by employees or agents of the Receiving Party who had no access to and did not rely upon the Confidential Information of the Disclosing Party; or information which the Receiving Party has received from a third party who, to the best of the Receiving Party's knowledge after reasonable enquiry, was entitled to disclose such information without restriction. The burden of establishing that any of the foregoing exceptions applies shall rest with the Receiving Party.

VI — Disclosure to Third Parties, Employees, and Affiliated Undertakings

The Receiving Party shall not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party. Within its own organisation, the Receiving Party shall restrict access to Confidential Information to those employees and officers who require such access for the purpose set forth in this Agreement and who have been informed of the confidential nature of the information and are bound by obligations of confidentiality no less stringent than those contained herein, whether by virtue of their employment contract, a separate confidentiality undertaking, or applicable statutory provisions. Disclosure to affiliated undertakings within the meaning of Sections 15 et seq. of the German Stock Corporation Act (Aktiengesetz) shall be permitted only with the prior written consent of the Disclosing Party and only to the extent that the relevant affiliate has assumed confidentiality obligations equivalent to those set forth in this Agreement by means of a written undertaking addressed to the Disclosing Party. The Receiving Party

shall remain fully responsible for any breach of confidentiality by any person to whom it has disclosed Confidential Information in accordance with this provision.

VII — Compulsory Disclosure and Regulatory Requirements

In the event that the Receiving Party is compelled to disclose Confidential Information by virtue of any applicable law, regulation, court order, or order of a governmental or regulatory authority, the Receiving Party shall, to the extent legally permissible, notify the Disclosing Party in writing without undue delay and prior to making any such disclosure, in order to afford the Disclosing Party a reasonable opportunity to seek protective measures or to contest the disclosure requirement. The Receiving Party shall cooperate with the Disclosing Party in any such efforts and shall in any event limit the scope of the compelled disclosure to the minimum extent required by law. Any Confidential Information so disclosed shall not, by reason of such compelled disclosure alone, cease to be treated as Confidential Information for the purposes of this Agreement.

VIII — Proprietary Rights, Intellectual Property, and Derivative Works

All Confidential Information shall remain the exclusive property of the Disclosing Party. Nothing in this Agreement shall be construed as granting to the Receiving Party any licence, right, title, or interest of any kind in or to any Confidential Information, or in or to any patent, utility model, trade mark, design right, copyright, database right, trade secret, or other intellectual property right of the Disclosing Party, whether by implication, estoppel, or otherwise. To the extent that the Receiving Party creates any analyses, compilations, studies, notes, memoranda, or other derivative materials based upon or incorporating Confidential Information, such materials shall themselves be treated as Confidential Information of the Disclosing Party and shall be subject to all of the obligations set forth in this Agreement. The Receiving Party shall not acquire any proprietary interest in such derivative materials by virtue of having created them, and shall, upon request, assign to the Disclosing Party any rights it may have acquired therein.

IX — Return, Destruction, and Certification

Upon the written request of the Disclosing Party, or upon the termination or expiry of this Agreement, whichever occurs first, the Receiving Party shall without undue delay, and in any event within twenty-one (21) calendar days, at the election of the Disclosing Party,

either return all originals and copies of documents, materials, data carriers, and other tangible items containing or embodying Confidential Information, or destroy all such items and all electronic copies thereof, including copies stored on backup systems, cloud storage, or archival media. The Receiving Party shall confirm compliance with this obligation by providing the Disclosing Party with a written certificate of return or destruction, as applicable, signed by a duly authorised representative of the Receiving Party. Notwithstanding the foregoing, the Receiving Party shall be entitled to retain such copies of Confidential Information as are required to be retained by mandatory applicable law or by the rules of any applicable regulatory authority, provided that such retained copies shall remain subject to the confidentiality obligations of this Agreement for so long as they are retained.

X — Warranties, Liability, and Limitation

The Disclosing Party provides all Confidential Information on an "as is" basis and makes no representation or warranty, express or implied, as to the accuracy, completeness, currentness, or fitness for any particular purpose of any Confidential Information disclosed hereunder. The Disclosing Party shall not be liable for any errors or omissions in the Confidential Information or for any decisions made or actions taken by the Receiving Party in reliance thereon. Each Party shall be liable for damages arising from a culpable breach of this Agreement in accordance with the applicable provisions of German law, in particular Sections 280 et seq. of the German Civil Code (Bürgerliches Gesetzbuch). The Parties agree that liability for damages arising from a breach of this Agreement shall not be subject to any contractual limitation or cap, save that liability for indirect or consequential damages shall be excluded to the extent permitted by applicable law, unless such damages result from wilful misconduct (Vorsatz) or gross negligence (grobe Fahrlässigkeit).

XI — Export Control and Compliance

The Receiving Party acknowledges that Confidential Information disclosed under this Agreement may be subject to export control laws and regulations, including without limitation the export control regulations of the European Union, the Federal Republic of Germany, and the United States of America. The Receiving Party undertakes not to export, re-export, or otherwise transfer any Confidential Information in violation of any applicable export control laws or regulations and shall obtain all necessary export licences and approvals before making any such transfer. Each Party shall comply with all applicable

anti-corruption, anti-bribery, and sanctions laws and regulations in connection with its performance of this Agreement.

XII — Miscellaneous Provisions

This Agreement constitutes the entire understanding between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, undertakings, and agreements, whether written or oral, relating thereto. No amendment, modification, or supplement to this Agreement shall be valid or binding unless made in writing and signed by duly authorised representatives of both Parties. The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of the remaining provisions; the Parties shall in such case negotiate in good faith to replace the invalid or unenforceable provision with a valid and enforceable provision which achieves, to the greatest extent possible, the economic, legal, and commercial objectives of the original provision. Neither Party may assign or transfer its rights or obligations under this Agreement, in whole or in part, without the prior written consent of the other Party, save that either Party may assign this Agreement to a legal successor in the context of a corporate reorganisation, merger, or acquisition, provided that the assignee assumes all obligations of the assigning Party under this Agreement. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. The failure of either Party to exercise or enforce any right or provision of this Agreement shall not constitute a waiver of such right or provision.

Executed in two original counterparts, one for each Party.

Breker Innovations GmbH	**ABC GmbH**
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____